

CENTER FOR OPEN SCIENCE FINANCIAL CONFLICT OF INTEREST POLICY

INTRODUCTION

This policy governing Financial Conflict of Interest (“FCOI”) applies to all Board Director or Employees of the Institution, the Center for Open Science. The Institutional Official is responsible for ensuring implementation of this policy and may suspend all relevant activities until the FCOI is resolved or other action deemed appropriate by the Institutional Official is implemented. Violation of any part of this policy may also constitute cause for disciplinary or other administrative action pursuant to Institutional policy.

DEFINITIONS

Conflict of Interest Committee (“COI Committee”) means the Institution’s committee or individual that advises the Institutional Official on conflict of interest matters. The committee consists of representatives from divisions of the Institution and is chaired by the Institutional Official.

“Family” means any member of the Board Director’s or Employee’s immediate family, specifically, any spouse, domestic partner, and dependent children.

“Financial Interest” means anything of monetary value received or held by a Board Director or Employee or a Board Director’s or Employee’s Family, whether or not the value is readily ascertainable, including, but not limited to:

1. salary or other payments for services (e.g., consulting fees, honoraria, or paid authorships for other than scholarly works);
2. any equity interests (e.g., stocks, stock options, or other ownership interests);
3. intellectual property rights and interests (e.g., patents, trademarks, service marks, and copyrights), upon receipt of royalties or other income related to such intellectual property rights and interests

Financial Interest does NOT include:

1. salary, royalties, or other remuneration from the Institution;
2. income from the authorship of academic or scholarly works;
3. income from seminars, lectures, or teaching engagements sponsored by or from advisory committees or review panels for U.S. Federal, state or local governmental agencies; U.S. institutions of higher education; research institutes affiliated with institutions of higher education, academic teaching hospitals, and medical centers; or
4. equity interests or income from investment vehicles, such as mutual funds and retirement accounts, so long as the Board Director or Employee does not directly control the investment decisions made in these vehicles.

For Board Directors or Employees, Financial Interest also includes any reimbursed or sponsored travel undertaken by the Board Director or Employee and related to his/her institutional responsibilities. This includes travel that is paid on behalf of the Board Director or Employee as well as travel that is reimbursed, even if the exact monetary value is not readily available. It excludes travel reimbursed or sponsored by U.S. Federal, state or local governmental agencies, U.S. institutions of higher education, research institutes affiliated with institutions of higher education, academic teaching hospitals, and medical centers.

Significant Financial Interest means a Financial Interest that reasonably appears to be related to the Board Director's or Employee's Institutional Responsibilities, and:

- A. if with a publicly traded entity, the aggregate value of any salary or other payments for services received during the 12 month period preceding the disclosure, and the value of any equity interest during the 12 month period preceding or as of the date of disclosure, exceeds \$5,000; or
- B. if with a non-publicly traded entity, the aggregate value of any salary or other payments for services received during the 12 month period preceding the disclosure exceeds \$5,000; or
- C. if with a non-publicly-traded company, is an equity interest of any value during the 12 month period preceding or as of the date of disclosure; or
- D. is income exceeding \$5,000 related to intellectual property rights and interests not reimbursed through the Institution, or
- E. is reimbursed or sponsored travel related to their institutional responsibilities.

"Financial Conflict of Interest" means a Significant Financial Interest (or, where the Institutional Official requires disclosure of other Financial Interests, a Financial Interest) that the Institution reasonably determines could directly and significantly affect the design, conduct or reporting of sponsored research.

"Institutional Official" means the individual within the Institution that is responsible for the solicitation and review of disclosures of significant financial interests including those of the Board Director's or Employee's Family related to the Board Director's or Employee's institutional responsibilities. For the purposes of this policy, the Institutional Official is designated as Andrew Sallans, Director of Operations.

"Institutional responsibilities" means the Board Director's or Employee's professional responsibilities associated with his or her Institutional appointment or position, such as research, teaching, clinical activities, administration, and institutional, internal and external professional committee service.

“Board Director” means any individual elected as, or elected to act as, representatives of the Institution to establish management related policies and to make decision on major organizational issues.

“Employee” means any individual who has management responsibility for the design, conduct, or reporting of sponsored research, or proposals for such funding. This definition is not limited to those titled or budgeted as principal Employee or co-Employee on a particular proposal, and may include postdoctoral associates, senior scientists, or graduate students. The definition may also include collaborators or consultants as appropriate.

“Research” means any work conducted at COS as part of a sponsored project. This could include, but is not limited to, a systematic investigation, study, experiment designed to contribute to generalizable knowledge, or development of a product or service.

CONFLICT OF INTEREST:

This policy is predicated on the expectation that Board Directors or Employees should conduct their affairs so as to avoid or minimize conflicts of interest, and must respond appropriately when conflicts of interest arise. To that end, this policy informs Board Directors or Employees about situations that generate conflicts of interest related to research, provides mechanisms for Board Directors or Employees and the Institution to manage those conflicts of interest that arise, and describes situations that are prohibited. Every Board Director or Employee has an obligation to become familiar with, and abide by, the provisions of this policy. If a situation raising questions of conflict of interest arises, a Board Director or Employee should discuss the situation with the Institutional Official.

1) DISCLOSURE OF FINANCIAL INTERESTS

All Board Directors or Employees are required to disclose their outside financial interests as defined above to the Institution on an annual and on an ad hoc basis, as described below. The Institutional Official is responsible for the distribution, receipt, processing, review and retention of disclosure forms.

A. Annual Disclosures

All Board Directors or Employees with management responsibility must disclose their Significant Financial Interests that are related to the Board Director’s or Employee’s institutional responsibilities to the Institution, through the Institutional Official, on an annual basis. All forms should be submitted to the Institutional Official or designee by December 31 for the previous calendar year or as determined by the subrecipient.

B. Travel

Board Directors or Employees must also disclose reimbursed or sponsored travel related to their institutional responsibilities, as defined above in the definition of Financial Interest and Significant Financial Interest. The third-party reimbursement process is specified in the Expense Reimbursement section of the Policies and Procedures Manual. Any questions regarding related sponsored travel not covered via the reimbursement process should be brought to the Institutional Official.

2) REVIEW AND DECISION OF THE INSTITUTIONAL OFFICIAL

If the disclosure form reveals a Significant Financial Interest, it will be reviewed promptly by the Institutional Official or designee for a determination of whether it constitutes a Financial Conflict of Interest. If a Financial Conflict of Interest exists, the Institutional Official will take action to manage the financial conflict of interest including the reduction or elimination of the conflict, as appropriate.

A Financial Conflict of Interest will exist when the Institutional Official or designee determines that a Significant Financial Interest could directly and significantly affect the design, conduct, or reporting of sponsored research. If the Institutional Official determines that there is a Financial Conflict of Interest that can be managed, he or she must develop and implement a written management plan. The affected Board Director or Employee must formally agree to the proposed management strategies and sign the written management plan before any related sponsored research goes forward.

The Institutional Official will periodically review the ongoing activity, monitor the conduct of the activity (including use of students and postdoctoral appointees), to ensure open and timely dissemination of the research results, and to otherwise oversee compliance with the management plan.

3) REPORTING TO SPONSOR

The Institutional Official will report financial conflicts of interest or non-compliance to sponsor in accordance with sponsor regulations. If the funding for the Research is made available from a prime awardee, such reports shall be made to the prime awardee prior to the expenditure of any funds and within 60 days of any subsequently identified financial conflict of interest such that the prime awardee may fulfill their reporting obligations to the sponsor.

4) Board Director or Employee NON-COMPLIANCE

A. Disciplinary Action

In the event of a Board Director's or Employee's failure to comply with this Policy, the Institutional Official may suspend all relevant activities or take other disciplinary action until the

matter is resolved or other action deemed appropriate by the Institutional Official is implemented.

An Institutional Official's decision to impose sanctions on a Board Director or Employee because of failure to comply with this Policy, or failure to comply with the decision of the Institutional Official, will be described in a written explanation of the decision to the Board Director or Employee, and, where applicable, the IRB, and will notify the individual of the right to appeal the decision. The institution will promptly notify the sponsor Awarding Component of the action taken or to be taken. If the funding for the research is made available from a prime awardee, such notification shall be made promptly to the prime awardee for reporting to sponsor.

B. Retrospective Review

In addition, if the Institutional Official determines that a Financial Conflict of Interest was not identified or managed in a timely manner, including but not limited to a Board Director's or Employee's failure to disclose a Significant Financial Interest that is determined to be a Financial Conflict of Interest, or failure by a Board Director or Employee to materially comply with a management plan for a Financial Conflict of Interest, the Institutional Official will complete a retrospective review of the Board Director's or Employee's activities and the sponsored research project to determine whether the research conducted during the period of non-compliance was biased in the design, conduct or reporting of the research.

Documentation of the retrospective review shall include the project number, project title, PI, name of Board Director or Employee with the Financial Conflict of Interest, name of the entity with which the Board Director or Employee has the Financial Conflict of Interest, reason(s) for the retrospective review, detailed methodology used for the retrospective review, and findings and conclusions of the review.

The Institutional Official will update any previously submitted report to the sponsor or the prime awardee relating to the research, specifying the actions that will be taken to manage the Financial Conflict of Interest going forward. This retrospective review will be completed in the manner and within the time frame established in sponsor regulations. If bias is found, the institution will promptly notify the sponsor Awarding Component and submit a mitigation report in accordance with the sponsor regulations. The mitigation report will identify elements documented in the retrospective review, a description of the impact of the bias on the research project and the plan of action to eliminate or mitigate the effect of the bias.

5) TRAINING

Each Board Director or Employee must complete training on this Policy, the Board Director's or Employee's responsibilities regarding disclosure and the sponsor regulations prior to engaging in research funded by sponsor, and at least every four years thereafter. They must also

complete training within a reasonable period of time as determined by the Institutional Official in the event that this Policy is substantively amended in a manner that affects the requirements of Board Directors or Employees, if the Board Director or Employee is new to the institution, or if it is determined that the Board Director or Employee has not complied with this policy or with a management plan related to their activities.

6) RECORD RETENTION

The Institutional Official will retain all disclosure forms, conflict management plans, and related documents for a period of three years from the date the final expenditure report is submitted to the sponsor or to the prime awardee, unless any litigation, claim, financial management review, or audit is started before the expiration of the three year period, the records shall be retained until all litigation, claims or audit findings involving the records have been resolved and final action taken.

7) CONFIDENTIALITY

To the extent permitted by law, all disclosure forms, conflict management plans, and related information will be confidential. However, the Institution may be required to make make such information available to the sponsor Awarding Component and/or HHS, to a requestor of information concerning financial conflict of interest related to sponsor funding or to the primary entity who made the funding available to the Institution, if requested or required. If the Institution is requested to provide disclosure forms, conflict management plans, and related information to an outside entity, the Board Director or Employee will be informed of this disclosure.

8) PUBLIC ACCESSIBILITY

Prior to the expenditure of funds, the Institution will publish on a publicly-accessible website or respond to any requestor within five business days of the request, information concerning any Significant Financial Interest that meets the following criteria:

- A. The Significant Financial Interest was disclosed and is still held by the senior and key personnel;
- B. A determination has been made that the Significant Financial Interest is related to the funded research; and
- C. A determination has been made that the Significant Financial Interest is a Financial Conflict of Interest.

The information to be made available shall be consistent with the requirements of the sponsor regulation.

9) REGULATORY AUTHORITY

This policy implements the requirements of 42 CFR 50 Subpart F and 45 CFR 94 as specified in the Federal Register; where there are substantive differences between this policy and the requirements, the requirements shall take precedence.